

STATE OF OKLAHOMA

2nd Session of the 60th Legislature (2026)

HOUSE BILL 3584

By: Harris

AS INTRODUCED

An Act relating to human trafficking; amending 21 O.S. 2021, Section 13.1, as last amended by Section 1, Chapter 352, O.S.L. 2025 (21 O.S. Supp. 2025, Section 13.1), which relates to required service of prison sentences; specifying type of offense that requires mandatory service of sentence; amending 21 O.S. 2021, Section 749, as last amended by Section 20, Chapter 486, O.S.L. 2025 (21 O.S. Supp. 2025, Section 748), which relates to human trafficking; modifying elements of crime to include certain victims; providing separate penalty provisions; amending 57 O.S. 2021, Section 138, as last amended by Section 1, Chapter 132, O.S.L. 2025 (57 O.S. Supp. 2025, Section 138), which relates to earned credits for inmates; prohibiting certain inmates from receiving earned credits; and declaring an emergency.

BE IT ENACTED BY THE PEOPLE OF THE STATE OF OKLAHOMA:

SECTION 1. AMENDATORY 21 O.S. 2021, Section 13.1, as last amended by Section 1, Chapter 352, O.S.L. 2025 (21 O.S. Supp. 2025, Section 13.1), is amended to read as follows:

Persons convicted of:

1. First degree murder as provided for in Section 701.7 of this title;

- 1 2. Second degree murder as provided for in Section 701.8 of
2 this title;
- 3 3. Manslaughter in the first degree as provided for in Section
4 711 of this title;
- 5 4. Poisoning with intent to kill as provided for in Section 651
6 of this title;
- 7 5. Shooting with intent to kill, use of a vehicle to facilitate
8 use of a firearm, crossbow or other weapon, assault, battery, or
9 assault and battery with a deadly weapon or by other means likely to
10 produce death or great bodily harm, as provided for in Section 652
11 of this title;
- 12 6. Assault with intent to kill as provided for in Section 653
13 of this title;
- 14 7. Conjoint robbery as provided for in Section 800 of this
15 title;
- 16 8. Robbery with a dangerous weapon as provided for in Section
17 801 of this title;
- 18 9. First degree robbery as provided for in Section 797 of this
19 title;
- 20 10. First degree rape as provided for in Section 1111 or 1114
21 of this title;
- 22 11. First degree arson as provided for in Section 1401 of this
23 title;

24

1 12. First degree burglary as provided for in Section 1431 of
2 this title;

3 13. Bombing as provided for in Section 1767.1 of this title;

4 14. Any crime against a child as provided for in Section 843.5
5 of this title;

6 15. Forcible sodomy as provided for in Section 888 of this
7 title;

8 16. Child sexual abuse material or aggravated child sexual
9 abuse material as provided for in Section 1021.2, 1021.3, 1024.1,
10 1024.2, or 1040.12a of this title;

11 17. Child sex trafficking as defined in Section 1030 of this
12 title;

13 18. Lewd molestation of a child as provided for in Section 1123
14 of this title;

15 19. Abuse of a vulnerable adult as defined in Section 10-103 of
16 Title 43A of the Oklahoma Statutes;

17 20. Aggravated trafficking as provided for in subsection C of
18 Section 2-415 of Title 63 of the Oklahoma Statutes;

19 21. Aggravated assault and battery as provided for in Section
20 646 of this title upon any person defending another person from
21 assault and battery;

22 22. Human trafficking ~~as defined in~~ as provided for in
23 paragraph 1 of subsection C of Section 748 of this title or
24

1 23. Discharging a firearm at or into a dwelling or building
2 used for public or business purposes, as provided for in Section
3 1289.17A of this title,
4 or any attempt, conspiracy, or solicitation thereof, shall be
5 required to serve not less than eighty-five percent (85%) of any
6 sentence of imprisonment imposed by the judicial system prior to
7 becoming eligible for consideration for parole. Persons convicted
8 of these offenses shall not be eligible for earned credits or any
9 other type of credits which have the effect of reducing the length
10 of the sentence to less than eighty-five percent (85%) of the
11 sentence imposed.

12 SECTION 2. AMENDATORY 21 O.S. 2021, Section 748, as last
13 amended by Section 20, Chapter 486, O.S.L. 2025 (21 O.S. Supp. 2025,
14 Section 748), is amended to read as follows:

15 Section 748. A. As used in Sections 748 and 748.2 of this
16 title:

17 1. "Coercion" means compelling, forcing or intimidating a
18 person to act by:

19 a. threats of harm or physical restraint against any
20 person,

21 b. any act, scheme, plan, or pattern intended to cause a
22 person to believe that performing, or failing to
23 perform, an act would result in serious physical,
24

- 1 financial, or emotional harm or distress to or
2 physical restraint against any person,
- 3 c. the abuse or threatened abuse of the law or legal
4 process,
- 5 d. knowingly destroying, concealing, removing,
6 confiscating or possessing any actual or purported
7 passport, labor or immigration document, or other
8 government identification document, including but not
9 limited to a driver license or birth certificate, of
10 another person,
- 11 e. facilitating or controlling ~~a person's~~ access of a
12 person to any addictive or controlled substance other
13 than for legal medical purposes,
- 14 f. blackmail,
- 15 g. demanding or claiming money, goods, or any other thing
16 of value from or on behalf of a prostituted person
17 where such demand or claim arises from or is directly
18 related to the act of prostitution,
- 19 h. determining, dictating or setting the times at which
20 another person will be available to engage in an act
21 of prostitution with a third party,
- 22 i. determining, dictating or setting the places at which
23 another person will be available for solicitation of,
24

1 or to engage in, an act of prostitution with a third
2 party, or

3 j. determining, dictating or setting the places at which
4 another person will reside for purposes of making such
5 person available to engage in an act of prostitution
6 with a third party;

7 2. "Commercial sex" means any form of commercial sexual
8 activity such as sexually explicit performances, prostitution,
9 participation in the production of pornography, performance in a
10 strip club, or exotic dancing or display;

11 3. "Debt bondage" means the status or condition of a debtor
12 arising from a pledge by the debtor of his or her personal services
13 or of those of a person under his or her control as a security for
14 debt if the value of those services as reasonably assessed is not
15 applied toward the liquidation of the debt or the length and nature
16 of those services are not respectively limited and defined;

17 4. "Human trafficking" means modern-day slavery that includes,
18 but is not limited to, extreme exploitation and the denial of
19 freedom or liberty of an individual for purposes of deriving benefit
20 from ~~that individual's~~ the commercial sex act or labor of that
21 individual;

22 5. "Human trafficking for labor" means:

23 a. recruiting, enticing, harboring, maintaining,
24 transporting, providing or obtaining, by any means,

1 another person through deception, force, fraud, threat
2 or coercion or for purposes of engaging the person in
3 labor, or

4 b. benefiting, financially or by receiving anything of
5 value, from participation in a venture that has
6 engaged in an act of trafficking for labor;

7 6. "Human trafficking for commercial sex" means:

8 a. recruiting, enticing, harboring, maintaining,
9 transporting, providing or obtaining, by any means,
10 another person through deception, force, fraud, threat
11 or coercion for purposes of engaging the person in a
12 commercial sex act,

13 b. recruiting, enticing, harboring, maintaining,
14 transporting, providing, purchasing or obtaining, by
15 any means, a minor for purposes of engaging the minor
16 in a commercial sex act, or

17 c. benefiting, financially or by receiving anything of
18 value, from participating in a venture that has
19 engaged in an act of trafficking for commercial sex;

20 7. "Legal process" means the criminal law, the civil law, or
21 the regulatory system of the federal government, any state,
22 territory, district, commonwealth, or trust territory therein, and
23 any foreign government or subdivision thereof and includes legal
24

1 civil actions, criminal actions, and regulatory petitions or
2 applications;

3 8. "Minor" means an individual under eighteen (18) years of
4 age; and

5 9. "Victim" means a person against whom a violation of any
6 provision of this section has been committed.

7 B. It shall be unlawful to knowingly engage in human
8 trafficking.

9 C. 1. Any person violating the provisions of this section
10 shall, upon conviction, be guilty of a Class A2 felony offense
11 punishable by imprisonment in the custody of the Department of
12 Corrections for a term of not less than five (5) years or for life,
13 or by a fine of not more than One Hundred Thousand Dollars
14 (\$100,000.00), or by both such fine and imprisonment. The person
15 shall be required to serve eighty-five percent (85%) of the sentence
16 before being eligible for parole consideration or any earned
17 credits. The terms of imprisonment specified in this paragraph
18 shall not be subject to statutory provisions for suspension,
19 deferral or probation, or state correctional institution earned
20 credits accruing from and after November 1, 1989, except for the
21 achievement earned credits authorized by subsection H of Section 138
22 of Title 57 of the Oklahoma Statutes. To qualify for such
23 achievement earned credits, such inmates must also be in compliance
24

1 with the standards for Class level 2 behavior, as defined in
2 subsection D of Section 138 of Title 57 of the Oklahoma Statutes.

3 2. Any person violating the provisions of this section where
4 the victim of the offense has an intellectual disability or the
5 victim is under eighteen (18) years of age at the time of the
6 offense shall, upon conviction, be guilty of a Class A2 felony
7 offense punishable by imprisonment in the custody of the Department
8 of Corrections for a term of not less than fifteen (15) years or for
9 life, or by a fine of not more than Two Hundred Fifty Thousand
10 Dollars (\$250,000.00), or by both such fine and imprisonment. The
11 person shall be required to serve one hundred percent (100%) of the
12 sentence imposed. The terms of imprisonment specified in this
13 paragraph shall not be subject to statutory provisions for
14 suspension, deferral or probation, or state correctional institution
15 earned credits.

16 3. The court shall also order the defendant to pay restitution
17 to the victim as provided in Section 991f of Title 22 of the
18 Oklahoma Statutes. ~~If the person is convicted of human trafficking,~~
19 ~~the person shall serve eighty-five percent (85%) of the sentence~~
20 ~~before being eligible for parole consideration or any earned~~
21 ~~credits. The terms of imprisonment specified in this subsection~~
22 ~~shall not be subject to statutory provisions for suspension,~~
23 ~~deferral or probation, or state correctional institution earned~~
24 ~~credits accruing from and after November 1, 1989, except for the~~

~~achievement earned credits authorized by subsection H of Section 138 of Title 57 of the Oklahoma Statutes. To qualify for such achievement earned credits, such inmates must also be in compliance with the standards for Class level 2 behavior, as defined in subsection D of Section 138 of Title 57 of the Oklahoma Statutes.~~

D. It is an affirmative defense to prosecution for a criminal, youthful offender, or delinquent offense that, during the time of the alleged commission of the offense, the defendant or alleged youthful offender or delinquent was a victim of human trafficking.

E. The consent of a victim to the activity prohibited by this section shall not constitute a defense.

F. Lack of knowledge of the age of the victim shall not constitute a defense to the activity prohibited by this section with respect to human trafficking of a minor.

SECTION 3. AMENDATORY 57 O.S. 2021, Section 138, as last amended by Section 1, Chapter 132, O.S.L. 2025 (57 O.S. Supp. 2025, Section 138), is amended to read as follows:

Section 138. A. Except as otherwise provided by law, every inmate of a state correctional institution shall have his or her term of imprisonment reduced monthly, based upon the class level to which they are assigned. Earned credits may be subtracted from the total credits accumulated by an inmate, upon recommendation of the institution's disciplinary committee, following due process, and upon approval of the warden or superintendent. Each earned credit

1 is equivalent to one (1) day of incarceration. Lost credits may be
2 restored by the warden or superintendent upon approval of the
3 classification committee. If a maximum and minimum term of
4 imprisonment is imposed, the provisions of this subsection shall
5 apply only to the maximum term. No deductions shall be credited to
6 any inmate serving a sentence of life imprisonment; however, a
7 complete record of the inmate's participation in work, school,
8 vocational training, or other approved program shall be maintained
9 by the Department of Corrections for consideration by the paroling
10 authority. ~~No earned~~ Earned credit deductions shall not be credited
11 or recorded ~~for any~~ under the following circumstances:

12 1. An inmate serving any sentence for a criminal act which
13 resulted in the death of a police officer, a law enforcement
14 officer, an employee of the Department of Corrections, or an
15 employee of a private prison contractor and the death occurred while
16 the police officer, law enforcement officer, employee of the
17 Department of Corrections, or employee of a private prison
18 contractor was acting within the scope of his or her employment;
19 ~~No earned credit deductions shall be credited or recorded for any;~~

20 2. Any person who is referred to an intermediate revocation
21 facility for violating any of the terms and conditions of probation;
22 or

23 3. Any inmate serving a sentence for the crime of human
24 trafficking of a child or a person with an intellectual disability

1 as provided in paragraph 2 of subsection C of Section 748 of Title
2 21 of the Oklahoma Statutes.

3 B. The Department of Corrections is directed to develop a
4 written policy and procedure whereby inmates shall be assigned to
5 one of four class levels determined by an adjustment review
6 committee of the facility to which the inmate is assigned. The
7 policies and procedures developed by the Department shall include,
8 but not be limited to, written guidelines pertaining to awarding
9 credits for rehabilitation, obtaining job skills and educational
10 enhancement, participation in and completion of alcohol/chemical
11 abuse programs, incentives for inmates to accept work assignments
12 and jobs, work attendance and productivity, conduct record,
13 participation in programs, cooperative general behavior, and
14 appearance. When assigning inmates to a class level, the adjustment
15 review committee shall consider all aspects of the policy and
16 procedure developed by the Department including, but not limited to,
17 the criteria for awarding credits required by this subsection.

18 C. If an inmate is subject to misconduct, nonperformance, or
19 disciplinary action, earned credits may be removed according to the
20 policies and procedures developed by the Department. Earned credits
21 removed for misconduct, nonperformance, or disciplinary action may
22 be restored as provided by Department policy, if any.

23 D. 1. Class levels shall be as follows:
24

- 1 a. Class level 1 shall include inmates not eligible to
2 participate in class levels 2 through 4, and shall
3 include, but not be limited to, inmates on escape
4 status.
- 5 b. Class level 2 shall include an inmate who has been
6 given a work, education, or program assignment, has
7 received a good evaluation for participation in the
8 work, education, or program assignment, and has
9 received a good evaluation for personal hygiene and
10 maintenance of living area.
- 11 c. Class level 3 shall include an inmate who has been
12 incarcerated at least three (3) months, has received
13 an excellent work, education, or program evaluation,
14 and has received an excellent evaluation for personal
15 hygiene and maintenance of living area.
- 16 d. Class level 4 shall include an inmate who has been
17 incarcerated at least eight (8) months, has received
18 an outstanding work, education, or program evaluation,
19 and has received an outstanding evaluation for
20 personal hygiene and maintenance of living area.

- 21 2. a. Until November 1, 2001, class level corresponding
22 credits are as follows:

23 Class 1 - 0 Credits per month;

24 Class 2 - 22 Credits per month;

1 Class 3 - 33 Credits per month;

2 Class 4 - 44 Credits per month.

3 b. Class level corresponding credits beginning November
4 1, 2001, for inmates who have ever been convicted as
5 an adult or a youthful offender or adjudicated
6 delinquent as a juvenile for a felony offense
7 enumerated in subsection E of this section are as
8 follows:

9 Class 1 - 0 Credits per month;

10 Class 2 - 22 Credits per month;

11 Class 3 - 33 Credits per month;

12 Class 4 - 44 Credits per month.

13 c. Class level corresponding credits beginning November
14 1, 2001, for inmates who have never been convicted as
15 an adult or a youthful offender or adjudicated
16 delinquent as a juvenile for a felony offense
17 enumerated in subsection E of this section are as
18 follows:

19 Class 1 - 0 Credits per month;

20 Class 2 - 22 Credits per month;

21 Class 3 - 45 Credits per month;

22 Class 4 - 60 Credits per month.

23 Each inmate shall receive the above specified monthly credits
24 for the class to which he or she is assigned. In determining the

1 prior criminal history of the inmate, the Department of Corrections
2 shall review criminal history records available through the Oklahoma
3 State Bureau of Investigation, Federal Bureau of Investigation, and
4 National Crime Information Center to determine the reported felony
5 convictions of all inmates. The Department of Corrections shall
6 also review the Office of Juvenile Affairs Juvenile Online Tracking
7 System for inmates who were adjudicated delinquent or convicted as a
8 youthful offender for a crime that would be an offense enumerated in
9 subsection E of this section.

10 3. In addition to the criteria established for each class in
11 paragraph 1 of this subsection, the following requirements shall
12 apply to each of levels 2 through 4:

- 13 a. satisfactory participation in the work, education, or
14 program assignment at the standard required for the
15 particular class level,
- 16 b. maintenance of a clean and orderly living area and
17 personal hygiene at the standard required for the
18 particular class level,
- 19 c. cooperative behavior toward facility staff and other
20 inmates, and
- 21 d. satisfactory participation in the requirements of the
22 previous class level.

23 4. The evaluation scale for assessing performance shall be as
24 follows:

- a. Outstanding - For inmates who display consistently exceptional initiative, motivation, and work habits.
- b. Excellent - For inmates who display above-average work habits with only minor errors and rarely perform below expectations.
- c. Good - For inmates who perform in a satisfactory manner and complete tasks as required, doing what is expected, with only occasional performance above or below expectations.
- d. Fair - For inmates who may perform satisfactorily for some periods of time, but whose performance is marked by obviously deficient and weak areas and could be improved.
- e. Poor - For inmates whose performance is unsatisfactory and falls below expected and acceptable standards.

E. No person ever convicted as an adult or a youthful offender or adjudicated delinquent as a juvenile in this state for any felony offense enumerated in this subsection or a similar felony offense pursuant to the provisions of another state, the United States, or a military court shall be eligible for the credits provided by the provisions of subparagraph c of paragraph 2 of subsection D of this section. Such enumerated offenses include:

- 1 1. Assault, battery, or assault and battery with a dangerous
2 weapon as defined by Section 645, subsection C of Section 652 of
3 Title 21, or Section 2-219 of Title 43A of the Oklahoma Statutes;
- 4 2. Aggravated assault and battery on a police officer, sheriff,
5 highway patrolman, or any other officer of the law as defined by
6 Section 650, subsection C of Section 650.2, Section 650.5,
7 subsection B of Section 650.6, or subsection C of Section 650.7 of
8 Title 21 of the Oklahoma Statutes;
- 9 3. Poisoning with intent to kill as defined by Section 651 of
10 Title 21 of the Oklahoma Statutes;
- 11 4. Shooting with intent to kill as defined by Section 652 of
12 Title 21 of the Oklahoma Statutes;
- 13 5. Assault with intent to kill as defined by Section 653 of
14 Title 21 of the Oklahoma Statutes;
- 15 6. Assault with intent to commit a felony as defined by Section
16 681 of Title 21 of the Oklahoma Statutes;
- 17 7. Assaults while masked or disguised as defined by Section
18 1303 of Title 21 of the Oklahoma Statutes;
- 19 8. Entering premises of another while masked as defined by
20 Section 1302 of Title 21 of the Oklahoma Statutes;
- 21 9. Murder in the first degree as defined by Section 701.7 of
22 Title 21 of the Oklahoma Statutes;
- 23 10. Solicitation for murder in the first degree as defined by
24 Section 701.16 of Title 21 of the Oklahoma Statutes;

1 11. Murder in the second degree as defined by Section 701.8 of
2 Title 21 of the Oklahoma Statutes;

3 12. Manslaughter in the first degree as defined by Section 711
4 or 712 of Title 21 of the Oklahoma Statutes;

5 13. Manslaughter in the second degree as defined by Section 716
6 or 717 of Title 21 of the Oklahoma Statutes;

7 14. Kidnapping as defined by Section 741 of Title 21 of the
8 Oklahoma Statutes;

9 15. Burglary in the first degree as defined by Section 1431 of
10 Title 21 of the Oklahoma Statutes;

11 16. Burglary with explosives as defined by Section 1441 of
12 Title 21 of the Oklahoma Statutes;

13 17. Kidnapping for extortion as defined by Section 745 of Title
14 21 of the Oklahoma Statutes;

15 18. Maiming as defined by Section 751 of Title 21 of the
16 Oklahoma Statutes;

17 19. Robbery as defined by Section 791 of Title 21 of the
18 Oklahoma Statutes;

19 20. Robbery in the first degree as defined by Section 797 of
20 Title 21 of the Oklahoma Statutes;

21 21. Robbery in the second degree as defined by Section 797 of
22 Title 21 of the Oklahoma Statutes;

23 22. Armed robbery as defined by Section 801 of Title 21 of the
24 Oklahoma Statutes;

1 23. Robbery by two or more persons as defined by Section 800 of
2 Title 21 of the Oklahoma Statutes;

3 24. Robbery with dangerous weapon or imitation firearm as
4 defined by Section 801 of Title 21 of the Oklahoma Statutes;

5 25. Any crime against a child provided for in Section 843.5 of
6 Title 21 of the Oklahoma Statutes;

7 26. Wiring or equipping any vehicle or structure with
8 explosives as defined by Section 849 of Title 21 of the Oklahoma
9 Statutes;

10 27. Forcible sodomy as defined by Section 888 of Title 21 of
11 the Oklahoma Statutes;

12 28. Rape in the first degree as defined by Sections 1111 and
13 1114 of Title 21 of the Oklahoma Statutes;

14 29. Rape in the second degree as defined by Sections 1111 and
15 1114 of Title 21 of the Oklahoma Statutes;

16 30. Rape by instrumentation as defined by Section 1111.1 of
17 Title 21 of the Oklahoma Statutes;

18 31. Lewd or indecent proposition or lewd or indecent act with a
19 child as defined by Section 1123 of Title 21 of the Oklahoma
20 Statutes;

21 32. Sexual battery of a person over 16 as defined by Section
22 1123 of Title 21 of the Oklahoma Statutes;

23

24

1 33. Use of a firearm or offensive weapon to commit or attempt
2 to commit a felony as defined by Section 1287 of Title 21 of the
3 Oklahoma Statutes;

4 34. Pointing firearms as defined by Section 1289.16 of Title 21
5 of the Oklahoma Statutes;

6 35. Rioting as defined by Section 1311 or 1321.8 of Title 21 of
7 the Oklahoma Statutes;

8 36. Inciting to riot as defined by Section 1320.2 of Title 21
9 of the Oklahoma Statutes;

10 37. Arson in the first degree as defined by Section 1401 of
11 Title 21 of the Oklahoma Statutes;

12 38. Endangering human life during arson as defined by Section
13 1405 of Title 21 of the Oklahoma Statutes;

14 39. Injuring or burning public buildings as defined by Section
15 349 of Title 21 of the Oklahoma Statutes;

16 40. Sabotage as defined by Section 1262, 1265.4 or 1265.5 of
17 Title 21 of the Oklahoma Statutes;

18 41. Extortion as defined by Section 1481 or 1486 of Title 21 of
19 the Oklahoma Statutes;

20 42. Obtaining signature by extortion as defined by Section 1485
21 of Title 21 of the Oklahoma Statutes;

22 43. Seizure of a bus, discharging firearm or hurling missile at
23 bus as defined by Section 1903 of Title 21 of the Oklahoma Statutes;

1 44. Mistreatment of a vulnerable adult as defined by Section
2 843.1 of Title 21 of the Oklahoma Statutes;

3 45. Sex offender providing services to a child as defined by
4 Section 404.1 of Title 10 of the Oklahoma Statutes;

5 46. A felony offense of domestic abuse as defined by subsection
6 C of Section 644 of Title 21 of the Oklahoma Statutes;

7 47. Prisoner placing body fluid on government employee as
8 defined by Section 650.9 of Title 21 of the Oklahoma Statutes;

9 48. Poisoning food or water supply as defined by Section 832 of
10 Title 21 of the Oklahoma Statutes;

11 49. Trafficking in children as defined by Section 866 of Title
12 21 of the Oklahoma Statutes;

13 50. Incest as defined by Section 885 of Title 21 of the
14 Oklahoma Statutes;

15 51. Procure, produce, distribute, or possess child sexual abuse
16 material as defined by Section 1021.2 of Title 21 of the Oklahoma
17 Statutes;

18 52. Parental consent to child sexual abuse material as defined
19 by Section 1021.3 of Title 21 of the Oklahoma Statutes;

20 53. Soliciting minor for indecent exposure as defined by
21 Section 1021 of Title 21 of the Oklahoma Statutes;

22 54. Distributing obscene material or child sexual abuse
23 material as defined by Section 1040.13 of Title 21 of the Oklahoma
24 Statutes;

1 55. Child sex trafficking as defined by Section 1030 of Title
2 21 of the Oklahoma Statutes;

3 56. Procuring a minor for child sex trafficking or other lewd
4 acts as defined by Section 1087 of Title 21 of the Oklahoma
5 Statutes;

6 57. Transporting a child under eighteen (18) years of age for
7 purposes of child sex trafficking as defined by Section 1087 of
8 Title 21 of the Oklahoma Statutes;

9 58. Inducing a minor to engage in child sex trafficking as
10 defined by Section 1088 of Title 21 of the Oklahoma Statutes;

11 59. A felony offense of stalking as defined by subsection D of
12 Section 1173 of Title 21 of the Oklahoma Statutes;

13 60. Spread of infectious diseases as defined by Section 1192 of
14 Title 21 of the Oklahoma Statutes;

15 61. Advocate overthrow of government by force, commit or
16 attempt to commit acts to overthrow the government, organize or
17 provide assistance to groups to overthrow the government as defined
18 by Section 1266, 1266.4 or 1267.1 of Title 21 of the Oklahoma
19 Statutes;

20 62. Feloniously discharging a firearm as defined by Section
21 1289.17A of Title 21 of the Oklahoma Statutes;

22 63. Possession, use, manufacture, or threat of incendiary
23 device as defined by Section 1767.1 of Title 21 of the Oklahoma
24 Statutes;

1 64. Causing a personal injury accident while driving under the
2 influence as defined by Section 11-904 of Title 47 of the Oklahoma
3 Statutes; or

4 65. Using a motor vehicle to facilitate the discharge of a
5 firearm as defined by Section 652 of Title 21 of the Oklahoma
6 Statutes.

7 F. The policy and procedure developed by the Department of
8 Corrections shall include provisions for adjustment review
9 committees of not less than three members for each such committee.
10 Each committee shall consist of a classification team supervisor who
11 shall act as chairman, the case manager for the inmate being
12 reviewed or classified, a correctional officer or inmate counselor,
13 and not more than two other members, if deemed necessary, determined
14 pursuant to policy and procedure to be appropriate for the specific
15 adjustment review committee or committees to which they are
16 assigned. At least once every four (4) months the adjustment review
17 committee for each inmate shall evaluate the class level status and
18 performance of the inmate and determine whether the class level for
19 the inmate should be changed.

20 Any inmate who feels aggrieved by a decision made by an
21 adjustment review committee may utilize normal grievance procedures
22 in effect with the Department of Corrections and in effect at the
23 facility in which the inmate is incarcerated.

1 G. Inmates granted medical leaves for treatment that cannot be
2 furnished at the penal institution where incarcerated shall be
3 allowed the time spent on medical leave as time served. Any inmate
4 placed into administrative segregation for nondisciplinary reasons
5 by the institution's administration may be placed in Class 2. The
6 length of any jail term served by an inmate before being transported
7 to a state correctional institution pursuant to a judgment and
8 sentence of incarceration shall be deducted from the term of
9 imprisonment at the state correctional institution. Inmates
10 sentenced to the Department of Corrections and detained in a county
11 jail as a result of the Department's reception scheduling procedure
12 shall be awarded earned credits as provided for in subparagraph b of
13 paragraph 1 of subsection D of this section, beginning on the date
14 of the judgment and sentence, unless the inmate is convicted of a
15 misdemeanor or felony committed in the jail while the inmate is
16 awaiting transport to the Lexington Assessment and Reception Center
17 or other assessment and reception location determined by the
18 Director of the Department of Corrections.

19 H. Additional achievement earned credits for successful
20 completion of departmentally approved programs or for attaining
21 goals or standards set by the Department shall be awarded as
22 follows:

23 Bachelor's degree.....200 credits;
24 Associate's degree.....100 credits;

High School Diploma or High School
Equivalency Diploma.....90 credits;
Certification of Completion of
Vocational Training.....80 credits;
Successful completion of
Alcohol/Chemical Abuse Treatment
Program of not less than four (4)
months continuous participation.....70 credits;
Successful completion of other
Educational Accomplishments or
other programs not specified in
this subsection.....10-30 credits;

Achievement earned credits are subject to loss and restoration in the same manner as earned credits. Achievement earned credits for a high school diploma or high school equivalency diploma may be attained by an inmate who completes such a program during continuous custody in a county jail while awaiting trial, sentencing, or transfer to the custody of the Department of Corrections. To qualify, an inmate must have been detained in connection with the case that resulted in his or her prison sentence and there must have been continuous custody in a county jail for program completion and transfer to the Department. Upon sentencing and transfer to the Department, the inmate shall receive achievement earned credits in the amount specified in this subsection, provided the county jail

1 documents completion of the program, including the date of
2 certification earned, on the official jail sentence form. The
3 official jail sentence form shall accompany the inmate upon transfer
4 to the Department.

5 I. The accumulated time of every inmate shall be tallied
6 monthly and maintained by the institution where the term of
7 imprisonment is being served. A record of such accumulated time
8 shall be:

9 1. Sent to the administrative office of the Department of
10 Corrections on a quarterly basis; and

11 2. Provided to the inmate.

12 SECTION 4. It being immediately necessary for the preservation
13 of the public peace, health or safety, an emergency is hereby
14 declared to exist, by reason whereof this act shall take effect and
15 be in full force from and after its passage and approval.

16

17 60-2-15793 GRS 01/14/26

18

19

20

21

22

23

24